

IN THE MATTER OF AN ARBITRATION

Between:

YORK UNIVERSITY

(“York” or the “University”)

- and -

YORK UNIVERSITY FACULTY ASSOCIATION

(“YUFA” or the “Association”)

and in the matter of a grievance dated November 29, 2004 of David Noble.

Russell Goodfellow – Sole Arbitrator

Appearances for the University:

John E. Brooks, counsel
Barry Miller
Leanne De Filippis

Appearances for the Union:

James K. McDonald, counsel
Anthony Singleton, student-at-law
Monica Mulvihill
Ruthanna Dyer
Penny Stewart
John Bell
David Noble

A hearing was held in this matter on: November 21 and 30, and December 14, 2005; February 27, March 29, September 25 and 29, October 13, 16, 20 and 27, November 17, 21, and 22, 2006; and February 21, and March 13 and 29, 2007.

AWARD

This award concerns the issuance of the following Media Release by York University on Friday, November 19, 2004:

York University, Hillel, SPHR Denounce Material Targeting Jewish Community Members

York University, the York University Foundation and student campus groups Solidarity for Palestinian Human Rights (SPHR) and Hillel at York have joined together to denounce material targeting Jewish members of the York community. This material was handed out without notice at an SPHR meeting yesterday, without the knowledge or authorization of event sponsors.

“York strongly condemns this highly offensive material, which singles out certain members of the York community on the basis of their ethnicity and alleged political views, including philanthropic volunteers who serve on the board of the York University Foundation,” said Lorna Marsden, York University President and Vice-Chancellor. “These views must not be permitted to diminish a culture of mutual respect on our campus and which unites [us] as a community.”

SPHR President Furat Al Yassin stated: “We stand behind our commitment to combat all forms of racism, discrimination and misinformation. SPHR was unaware of the material which was distributed without warning and in no way endorses the views expressed. Our goal is to promote and protect Palestinian human rights both locally and internationally and we categorically reject any effort to distort our aims.”

“We join with others within the York University community in expressing our shock to seek such inflammatory material on our campus,” said Dori Borshiov, President of Hillel @ York University. “This type of personal targeting of community members is deeply distressing when we have all worked so hard to create a positive atmosphere on York’s campus. We are deeply concerned about bigotry and racism and appreciate the university administration’s immediate and unequivocal response. It is unacceptable for any student to be exposed to this type of bigotry.”

York University is a non-profit academic institution and, as such, does not adopt any stance on foreign policy matters. The two-page hand-out alleges that the University has implemented policies and taken actions in pursuit of geopolitical objectives.

The University continues to engage student groups interested in world issues, as well as respected community organizations, to ensure that all members of the York [-p.2-] community conduct themselves in a manner that reflects Canadian values of mutual respect and diversity. Inherent in this is a rejection of intolerance of the identities, beliefs and politics of others.

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 Director, Media Relations
 York University
 416-736-5603

Zac Kaye
 Hillel @ York
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 Media Relations
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The Media Release was posted on York's web site and sent to a number of the major news organizations in Canada, including the Globe and Mail, the National Post, the Toronto Star and the Toronto Sun. The "material" referred to in the Media Release was the following two-page (one page double-sided) document which the parties frequently referred to as the "pamphlet" or "flyer":

THE YORK UNIVERSITY FOUNDATION: THE TAIL THAT WAGS THE DOG
 (Suggestions for Further Research)

(1) The York University Foundation (YUF), which was established in 2002 is the tail that wags the dog that is York University (YU). The administration of YU, like every other University, is guided foremost by fundraising considerations. York's fundraising affairs are directed by Paul Marcus, who runs both the YUF and the York development office. Contributions to YU now come through YUF. Both the YU chair of the board of governors, Marshall Cohen, and the YU President, Lorna Marsden, sit also on the YUF Board. The YUF has a staff of 34 people.

(2) The YUF is biased by the presence and influence of staunch pro-Israel lobbyists, activists, and fundraising agencies (see page 2).

(3) The recent decisions by the YU President and Board of Governors to discipline pro-Palestinian activists (notably the suspension of Daniel Freeman-Maloy) and otherwise to clamp down on campus protests, appear to reflect the strongly pro-Israel orientation of the YUF.

(4) The recent transformation of the York Federation of Students in this same political direction was spearheaded by Young Zionist Partnership members Paul Cooper and Yaakov Roth (with the help of Josh Cooper, Thornhill conservative party candidate and UJA fundraiser) (Note: the United Israel Appeals National Jewish Campus Life Initiative was established in the spring of 2003 to train pro-Israeli activists and cultivate campus "influentials".)

(5) The recent decision to locate the Argonaut football stadium at YU was engineered by Argonaut owner and YUF director Howard Sokolowski, together with his partner David Cynamon, likely with help from his former business partner Ontario Finance Minister Greg Sorbara (whose brother Joseph is also on the YUF board, chairs the York University Development Corporation and sits ex officio on the Land Use Committee of the Board of Governors), and MP Joe Volpe, whose riding constitutes the center of the UJA community. The direct taxpayer contribution to the stadium (\$27 million from the federal government and \$8 million from the provincial) will flow through the YUF. Another \$15 million will come from YU and, thus, indirectly from the taxpayer.

(6) Transactions of the YUF and YU, such as the Argonaut stadium deal, are not publicly accessible. YUF is deemed a private entity. YU, like all Ontario universities, is not covered by the [Freedom of Information and Protection of Privacy Act \(FIPPA\)](#). The decision to leave the universities out of FIPPA was made in 1987, when FIPPA was introduced, by the then Liberal government. At the time the Minister of Colleges and Universities was Greg Sorbara.

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[Abbreviations: York University Foundation (YUF), York University (YU) United Jewish Appeal Federation of Greater Toronto (UJA), United Israel Appeal of Canada (UIA) Mt. Sinai Hospital Foundation (MSHF)]

YORK UNIVERSITY FOUNDATION BOARD OF DIRECTORS members include:

PAUL E. MARCUS, President and CEO, YUF, and Vice President, Development YU, (director of all university fund-raising) formerly director of development at both UJA and MSHF

H. BARRY GALES, director, MSHF; Midland Group, business partner and brother(?) of Leslie Gales, chair of the board, UJA

ALONNA GOLDFARB, partner, Intelligence Marketing (family business, with father Martin Goldfarb), one of whose major clients is State of Israel Bonds, the development corporation for Israel

MAXWELL GOTLIEB, UJA, MSHF, Cassels Brock

JULIA KOSCHITZKY, chair, Israel NOW consortium, board member, UJA, UIA, CCIJ (Canadian Council for Israel and Jewish Advocacy), Jewish Agency for Israel; cabinet, National Jewish Campus Life (with Leslie Gales, Heather Riesman, and the late Israel Asper)

HONEY SHERMAN, UJA, MSHF, co-chair, UJA 2005 Top Gifts campaign (with David Cynamon*); wife of Barry Sherman, CEO of Apotex (the pharmaceutical company involved in the case of Nancy Olivieri)

HOWARD SOKOLOWSKI, co-chair 2003 campaign, UJA, with wife Linda Frum, (sister of David Frum), vice-chair, UJA; Israel Emergency Fund; CEO, Tribute Homes (which bought land from YU for housing development); co-

owner Argonauts football team (for which YU is now building a stadium, at public expense). [Note: the other owner is David Cynamon*]

JOSEPH D. SORBARA, Sorbara Group, brother of Greg Sorbara, Ontario Minister of Finance. Ontario is contributing \$8 million for Argos stadium. Greg Sorbara is former business partner of Howard Sokolowski.

MARSHALL A. COHEN, chair of Board of Governors, YU, former Molson CEO, former director, MSHF, Cassels Brock law firm.

JUDITH COHEN, chair of YU Fiftieth Anniversary Committee, wife of Marshall

LORNA MARSDEN, President and Vice Chancellor, YU

The author of the pamphlet, although not identified in the Media Release or in the pamphlet itself, was David Noble. David Noble is a full Professor in the Division of Social Sciences in the Faculty of Arts at York. Professor Noble had distributed the flyer at a film screening held on campus the previous day, Thursday, November 18, 2004. The film screening had been put on by a York student organization known as “Solidarity for Palestinian Human Rights” (or “SPHR”). Although unknown to York at the time, Professor Noble had prepared the document and distributed it to students in, or in connection with, two or three of his classes earlier that day and on the preceding day.

The Media Release came to Professor Noble’s attention on the day that it was issued through a telephone call from a reporter at the Globe and Mail, Caroline Alphonso. Ms. Alphonso called Professor Noble to confirm that he was the author of the flyer, to obtain his reaction to the Media Release, and to inquire about the circumstances under which the flyer had been distributed. Ms. Alphonso had learned of Professor Noble as the putative author of the flyer through another media release – one that had been issued at or about the same time as the York Media Release by the Canadian Jewish Congress (the “CJC”). The CJC media release reads as follows:

Nov 22, 2004 – CJCONT, UJA Federation condemn comments by York University Prof

November 19, 2004
For Immediate Release

TORONTO – Canadian Jewish Congress Ontario Region and UJA Federation of greater Toronto condemned comments made last night by York University sociology Professor David Noble, calling his statements “appalling,” and welcomed a quick response from York University also condemning the incident.

Following a film presentation on campus sponsored by two student groups, the Arab Law Students Association and Solidarity for Palestinian Human Rights, Noble passed out a flyer which alleged that the York University Foundation is

biased by “the presence and influence of staunch pro-Israel lobbyists, activists and fundraising agencies.”

The flyer also suggested that the Foundation controls activities on campus, and listed by name the individual members of the board and their affiliations with the Toronto Jewish community.

“David Noble’s actions are appalling,” said CJCONT Chair Joel Richier. “This is antisemitism, vaguely disguised as anti-Israel rhetoric. It’s the same kind of pernicious action that has historically been used to attack Jews and their involvement in wider society,” he added.

Zac Kaye, Hillel of Greater Toronto Executive Director, said Noble’s actions “will not stop us from working with all groups on campus to create an environment where students will feel secure and free to express themselves.”

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Representing the Jewish communities of Ontario

Contact:

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Canadian Jewish Congress
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Professor Noble testified that, after speaking with Ms. Alphonso and learning about the York Media Release, he felt “deeply offended”, “outraged”, “under assault”, “shocked”, “stunned”, “astonished”, and “blind-sided” to have been “labelled an anti-semite” by his “own University”. Professor Noble testified that he felt all of these things “viscerally” because he, himself, is Jewish, the son of a Polish immigrant father, and without much of an extended family. The strong implication of Professor Noble’s evidence on the latter point was that many members of his, or his parents’, extended family had perished in the Holocaust. Professor Noble testified that in conversation with members of his immediate family that evening concerns were raised about his personal safety “because of the number of zealot crazies out there”. Recalling what he referred to as the “trauma” of these events, Professor Noble remembers thinking that he was glad that his mother was not alive to learn of this.

The next day, Saturday, November 20, 2004, the following article appeared in the Globe and Mail:

York U. condemns professor’s actions

By CAROLINE ALPHONSO
EDUCATION REPORTER

Saturday, Nov. 20, 2004

York University condemned the actions of one of its professors yesterday, saying material he handed out on campus targeted Jewish members of the school community.

After a film presentation Thursday night sponsored by the student group Solidarity for Palestinian Human Rights, professor David Noble, who is Jewish, distributed material alleging that the York University Foundation is “biased by the presence and influence of staunch pro-Israel lobbyists, activities [error in original] and fundraising agencies.”

The foundation is the fundraising arm of the sprawling university, located in the north end of Toronto.

“York strongly condemns this highly offensive material, which singles out certain members of the York community on the basis of their ethnicity and alleged political views, including philanthropic volunteers who serve on the board of the York University Foundation,” president Lorna Marsden said in a statement yesterday.

The material, entitled the York University Foundation: The Tail that Wags the Dog (Suggestions for Further Research), names members of the foundation’s board of directors and their affiliation with Jewish groups.

Prof. Noble stood by his material yesterday, “Whenever you shed any light on anything, they point the flashlight somewhere else and want you to look there,” he said.

The history professor said he went to the film presentation after seeing a flyer for it. He said he had had no intention of handing out material and distributed his flyer only for “information.”

He said he was curious as to why the university was clamping down on campus protests and pro-Palestinian students were being disciplined. He said many members of the York University Foundation were pro-Israeli and have considerable influence on the school’s administration.

“The administration of [York University], like every other university administration, is guided foremost by fundraising considerations,” his material stated.

“I’ve been at York for 15 years and the suppression of speech and assembly is unprecedented,” Prof. Noble said.

But Jewish group Hillel at York and Solidarity for Palestinian Human Rights denounced the material in a joint statement with the university yesterday.

“We have absolutely no affiliation [with him] and don’t endorse such material,” Rabia Siddiqui, a spokeswoman for the SPHR, said in an interview. “Hate is not part of our mandate and we believe there’s no place for this kind of activity within our forum, nor should there be any place for this on any other clubs within the campus or outside.”

A spokeswoman at York said the incident doesn’t fall under any existing codes of academic discipline.

Professor Noble read the Globe and Mail article and, for the first time, saw the Media Release, which had been sent to him, together with the CJC release, by Jim Turk, the Executive Director of the Canadian Association of University Teachers, whom Professor Noble had called on Friday after receiving Ms. Alphonso’s call.

Professor Noble testified that, over the course of the day on Saturday, he received numerous telephone calls of support, including from two politicians, a fellow faculty member, a student, someone from the Canadian Arab Federation, and the President of the SPHR, who, according to Professor Noble, offered an “abject” and “profuse” apology for the quote that his organization had provided to York for inclusion in the Media Release. Professor Noble testified that certain of these calls “awakened” him to the “larger size of the events”.

Among the calls received by Professor Noble on Saturday was one from a reporter at the Toronto Star, Prithi Yelaja. Professor Noble testified that, by the time of Ms. Yelaja’s call, he had already received many of other calls and had begun to feel “a little more emboldened to fight back” and to “demand an apology”. The following article appeared in the Sunday, November 21, 2004, edition of the Star:

Memo stirs controversy at York U.

PRITHI YELAJA
STAFF REPORTER

A history professor is demanding an apology from a leading Jewish rights group and York University for what he calls “scurrilous attacks” on his character and attempts to squelch his freedom of speech.

If no apology is forthcoming, David Noble said he’d consider legal action against the Canadian Jewish Congress and York.

The congress has denounced Noble for spreading “anti-Semitic” material on campus.

Noble handed out a memo last week listing the names of the directors of the York University Foundation, the school’s fundraising arm, and their links to pro-Israel organizations.

The material, which appears to suggest that a small cabal of Jews runs the foundation, is reminiscent of classic Jewish-conspiracy theories, Bernie Farber, executive director of the congress, said yesterday.

“Not only is this absurd, it reeks of anti-Semitism It’s bizarre, and if this wasn’t coming from an academic, one would laugh it off. The fact that it’s coming from an academic should scare people.”

Noble, who has taught at York for 15 years and is Jewish, said those comments are worrisome and “deeply offensive to me because my own family has suffered from anti-Semitism.”

“When you get these kinds of scurrilous attacks it trivializes anti-Semitism. I guess they didn’t do their homework and find out I was Jewish.”

There will be no apology, Farber said, arguing Noble can’t use that as “a cloak” for his actions.

Noble spontaneously distributed copies of a memo he wrote called “The Tail that Wags the Dog (Suggestions for Further Research)” after a Thursday film screening by the student group Solidarity for Palestinian Human Rights.

It claims the foundation “is biased by the presence and influence of staunch pro-Israel lobbyists, activists and fundraising agencies.” Noble asserted yesterday that the foundation is “de facto running York. They clamp down on any criticism of Israel.”

Pro-Arab and pro-Israel students separately agreed to denounce Noble’s actions.

Rabia Siddiqui of the Solidarity group said it was inappropriate “for anyone to single anyone out because of their race, in any circumstances.”

“It is unacceptable for any student to be exposed to this type of bigotry,” Dori Borshiov, president of the Jewish group Hillel at York, added in a statement.

A statement by university president Lorna Marsden said “York strongly condemns this highly offensive material,” which singles out people “on the basis of their ethnicity and alleged political views.”

On Monday, November 22, 2004, a further, but briefer, article appeared in the Brantford Expositor. Also on that day, Professor Noble contacted the Faculty Association which, in turn, consulted legal counsel. On Monday, November 29, 2004, YUFA filed the following grievance on Professor Noble’s behalf:

York University Faculty Association
Memorandum

To: Barry Miller, Director, Academic Employee Relations

From: Ruthanna Dyer, Chief Steward

Re: Grievance

Date: 29 November 2004

David Noble hereby grieves, with the formal support of the York University Faculty Association (“YUFA”), that the Administration has discriminated against him on the basis of his political beliefs and/or his non-conforming personal or social behaviour, contrary to Article 3.01 of the collective agreement and has violated Article 10.01 of the collective agreement by failing to protect and promote academic freedom and, in particular, his freedom to examine, question, teach and learn, and his freedom to pursue without interference or reprisal his research, creative and professional activities, and to criticize the University or society at large and to be free from institutional censorship. Furthermore the Administration has violated Article 10.01 by libelling the grievor in a Media Release described below and by infringing his freedom to [sic] speech.

The Administration has also breached Article 11 of the collective agreement by failing to allow the grievor to make the results of his scholarly or creative work accessible to the general public.

The basis for the grievance is that the Administration prepared and distributed a Media Release entitled “York University, Hillel, SPHR Denounce Material Targeting Jewish Community Members” (the “Media Release”). The Media Release was libellous, by innuendo or otherwise, and was contrary to the collective agreement in that the Administration libelled and branded the grievor as anti-Semitic and alleged that his criticism of the University and society at large, as expressed in a flyer that he had produced and distributed entitled “THE YORK UNIVERSITY FOUNDATION: THE TAIL THAT WAGS THE DOG (SUGGESTIONS FOR FURTHER RESEARCH)”, was “highly offensive material, which singles out certain members of the York Community on the basis of their ethnicity and alleged political views, including philanthropic volunteers who are on the board of [sic]York University foundation[sic]” and further implied and/or alleged that the grievor failed to conduct himself in a manner that reflected Canadian values of mutual respect and diversity and that in some way the grievor had exhibited an intolerance of the identities, beliefs and politics of other members of the University community. The Administration either deliberately or negligently misrepresented the nature of the issues raised in the flyer and the comments that Professor Noble made in the flyer regarding the relationship between the York University Foundation and recent decisions by the York University President and the Board of Governors.

The following remedies are requested:

1. a declaration that the Administration has violated the collective agreement by publishing the Media Release and by organizing student

groups to join with the Administration in making the statements set out in the Media Release;

2. an apology from the University for violating his academic freedom and for its defamation of him, in a form satisfactory to him and to be approved by him;
3. the distribution of a media release in a form satisfactory to him confirming that the Administration recognizes that the earlier Media Release, attached hereto, was a grievous error and in breach of the collective agreement, confirming that the grievor has the right both pursuant to the collective agreement and in law to criticize the University or society at large, and regretting that the administration itself is responsible for the characterization of the flyer as material that singled out certain members of the community on the basis of their ethnicity, which was an unfortunate attempt by the University to diminish the culture of mutual respect that ought to exist on the York University campus;
4. damages in the amount of \$10,000,000.00 for the Administration's defamation of the grievor; and
5. such further and other relief as may be necessary to provide appropriate redress for the grievor and to reaffirm the Administration's commitment to a culture of mutual respect on the York University campus and its commitment to academic freedom and its commitment to the creation of a community where individuals can criticize the University or society at large without fear of interference or reprisal from the Administration.

Having been unable to resolve the grievance in the grievance procedure, the parties referred the matter to arbitration before me.

By way of further background, three awards have been issued in this matter to date, all in response to motions brought by the University. In the first award, dated December 9, 2005, I rejected the University's request for dismissal of the defamation claim on the basis of a lack of jurisdiction. In the second award, dated May 1, 2006, I upheld a request by the University that Professor Noble be found in breach of the implied undertaking rule in respect of documentary disclosure. In the third award, dated November 6, 2006, I upheld the University's request, in part, and dismissed it, in part, for an order excluding certain opinion evidence that had been proffered by the Faculty Association through Professor Jon Thompson. In so doing, and without objection from the University, I found Professor Thompson to be an "expert" in matters related to academic freedom.

Evidence from ten witnesses was given in these proceedings. Eight witnesses were called, or their evidence otherwise introduced, by the Association and two witnesses testified for the University. Final argument consumed the better part of three hearing

days and included reference to more than 75 cases and materials. The vast majority of those cases dealt with the defamation claim.

I will address the issues in the order in which they were presented, making such additional evidentiary references as are necessary to explain my decision.

The Alleged Breaches of the Collective Agreement

Academic Freedom

The principal breach of the collective agreement alleged by the Faculty Association relates to Article 10.01. Under the heading “Academic Freedom”, Article 10.01 provides:

- 10.01 The parties agree to continue their practice of upholding, protecting, and promoting academic freedom as essential to the pursuit of truth and the fulfillment of the University’s objectives. Academic freedom includes the freedom of an employee to examine, question, teach, and learn; to disseminate his/her opinion(s) on any questions related to his/her teaching, professional activities and research both inside and outside the classroom; to pursue without interference or reprisal, and consistent with the time constraints imposed by his/her other University duties, his/her research, creative or professional activities, and to freely publish and make public the results thereof; to criticize the University or society at large; and to be free from institutional censorship. Academic freedom does not require neutrality on the part of the individual, nor does it preclude commitment on the part of the individual. Rather, academic freedom makes such commitment possible.

It was the position of the Association that the publication of the Media Release, and the manner in which the University dealt with the distribution of the two-page flyer generally, breached Article 10.01. On the evidence, YUFA submits that the University’s response to Professor Noble’s pamphlet was handled by York’s Media Relations Division without any consideration for academic freedom and in complete derogation of it. No thought or attention was paid to the Collective Agreement or to Article 10.01 and no contact was made with Professor Noble or the Faculty Association to investigate or review the matter. Rather, YUFA submits, York was motivated solely to “get ahead of the story” and, in the process, breached Article 10.01.

YUFA asserts that through the publication of the Media Release York effectively branded Professor Noble a racist, a bigot, and an anti-semitic, and suggested that no student should ever be exposed to the results of his research. In so doing, the University failed to “uphold”, “protect” and “promote” academic freedom as defined in Article 10.01. YUFA asserts that if the University was of the view that Professor Noble had engaged in some form of misconduct – for example, if it deemed him to have acted contrary to its “Policy Concerning Racism” – it should have disciplined him. If the University had proceeded in that fashion, the issue would properly have been whether there was just cause for the University’s conduct – a matter for it to prove. This, YUFA submits, is part of the

protection of academic freedom – an understanding that if a professor is deemed to have misconducted himself or herself the University will deal with the matter directly, not through the morning papers. YUFA points out that the Media Release remains available on York's web-site and no apology has ever been tendered to Professor Noble. By way of remedy, YUFA asks for a declaration, an apology and an award of damages.

The University submits that there has been no breach of Article 10.01. There is no evidence to suggest that Professor Noble's ability to do any of the things referred to in the Article was compromised in any way by the Media Release. To the contrary, the evidence is that Professor Noble carried on much as before, continuing to write and speak on the issues, even publishing "The Tail that Wags the Dog, Part II", with no disciplinary or other consequences. The University submits that the Media Release was a one-time event that neither purported to tell, nor had the effect of telling, Professor Noble what he could or could not do as an academic.

The University contends that academic freedom is not breached by criticism or even condemnation of what a professor may have said or written. This is true regardless of whether the critic is possessed of any "academic freedom" of its own. The University is entitled to respond to public statements reasonably deemed offensive by members of its community. In this case, Professor Noble's material singled out volunteer members of a philanthropic board based solely on their ethnicity and alleged political views and, as such, was entirely inconsistent with the type of community that York seeks to build. Moreover, in addressing the pamphlet, the University did not refer to or identify Professor Noble in any way; rather, it restricted its comments to the "material". The University submits that the absence of discipline is irrelevant; it was free to issue a public statement. Similarly, no apology was tendered because none was warranted. There was no breach of the Collective Agreement. The University asks that this aspect of the grievance be dismissed.

With the greatest of respect for the very able submissions of counsel for the University, I find the University's position on the question of academic freedom to be untenable.

To begin, I note that the University acknowledges, based on the evidence given at the hearing, that in creating and distributing the flyer Professor Noble was engaged in an "academic" exercise – if only, in the University's submission, "broadly defined". Professor Noble testified that he came to be interested in the issues addressed in the pamphlet as a result of events at the University involving the student Daniel Freeman-Maloy. Mr. Freeman-Maloy was a first year political science student at York who was barred by the University from re-registering for three years and banned from campus for his role in two campus demonstrations. Following the commencement of legal proceedings, the suspension and ban were lifted. Professor Noble testified that he took an interest in the free speech aspects of Mr. Freeman-Maloy's case and hired him (while the suspension and ban were still in place) as a research assistant for the summer of 2004 with the intention of having him work on campus. Perhaps not surprisingly, the University refused to permit that place of work. Then, in the fall of 2004, after the

suspension and ban had been vacated, Mr. Freeman-Maloy enrolled in one of Professor Noble's classes – "The Underside of Progress".

Professor Noble testified that as part of the course, students undertook a research project examining issues of freedom of speech and freedom of assembly on campus. Issues of "governance and how it worked", as well as Mr. Freeman-Maloy's particular situation, were also discussed. Then, one October day, Professor Noble testified, Mr. Freeman-Maloy attended class "visibly shaken", announcing that he had been "threatened with disciplinary action again for participating in a peaceful vigil in support of the people of Gaza". Professor Noble testified that he was "alarmed" by this – that it could be "happening all over again" – and set out to investigate what might be behind it.

Borrowing a friend's computer, and having academic experience and interest in "mapping-out" patterns of power, including interlocking directorships and organizational affiliations, Professor Noble went to the York University web-site and, from there, to the York University Foundation's web-site looking for possible explanations. Professor Noble then reduced the results of his efforts to the two pages set out above and distributed it to students in the aforementioned course and in, or in connection with, two other courses that he was teaching that day and the next. After the last of these, and before leaving campus for the day, Professor Noble noticed an announcement for a film-screening dealing with the "Promised Land" (which words happened to form part of the title of a book that he was working on) and decided to attend. Following the film (which dealt, according to Professor Noble, with the "alleged distortion of U.S. media coverage of the middle-east as a result of the undue influence of what was described as the U.S.-Israel lobby"), and during a subsequent question and answer session, Professor Noble spoke up, indicating that people might be interested in his document. He then handed out a few copies there as well.

To be sure, Professor Noble's pamphlet cannot readily be described as an exercise in "high scholarship" – simply being "suggestions for further research" – but there is no doubt that it fell within *at least* the *broad* scope of his work and interests as an academic. As a result, the issue in this case is not whether the preparation and dissemination of the pamphlet fell within the list of activities identified in Article 10.01 but whether York's response breached the Article.

The University defends its response in three ways. First, it submits that it had the *right to respond* and to do so in the form of a media release rather than, for example, by way of discipline. Second, it submits that the Media Release focused solely on the material and did not in any way identify the author or distributor. Third, it submits that the Media Release had no apparent effect on Professor Noble's academic activities.

There are few concepts or principles more important to the healthy and vibrant functioning of a university than academic freedom. The academy is and must be a bulwark against conventional thought and received opinion not just for the benefit of its members but for society at large. It is through free thought, investigation, and the development and dissemination of ideas that society advances and progress is

made. Today's accepted practices and beliefs become tomorrow's discredited notions and out-moded ideas when exposed to the freedom of public debate and scientific scrutiny. The university has an essential role to play in this process – a role that can only be fulfilled if academic freedom is broadly defined and jealously guarded.

The present parties appear to have taken these concepts to heart in the terms of their Collective Agreement. Article 10.01 defines academic freedom, and identifies the parties' obligations in relation to it, in extremely broad terms. The Article begins with a statement as to what it is that the parties must do and why it is that they must do it: continue the practice of "upholding, protecting, and promoting academic freedom as essential to the pursuit of truth and the fulfillment of the University's objectives". This statement of high purpose conditions the approach to be taken to the balance of the Article and requires one to ask, in a given case, whether the parties have lived up to that obligation in relation to the various aspects of academic freedom.

"Academic freedom" has been defined by the parties as the freedom of the "employee" (defined as a member of the YUFA bargaining unit) to engage in the widest possible variety of intellectual and practical pursuits associated with the scholarly enterprise. Such pursuits include: examining, questioning, teaching and learning; disseminating opinion on questions related to teaching and research both inside and outside of the classroom; pursuing, without interference or reprisal, research or creative activities; the ability to freely publish and make public the results of such research and creative activities; and the ability to criticize the University or society at large.

Defining academic freedom in this way does not, however, deprive the University of its own freedom of speech. Simply because a matter emerges from the pen or computer of a faculty member does not mean that the University is barred from addressing it. The University has the right to take positions, including public positions, on whatever matters it chooses. Necessarily, this includes the right to defend itself against any challenges that it may perceive to its functioning as an open and welcoming learning community and to the public reputations of those who volunteer their time and effort to support it.

Where the University chooses to make a public statement in respect of the academic activities of one of its professors, however, it finds itself in a delicate position. Article 10.01 requires the University not only to not give offense to the concept of academic freedom but to uphold, protect and promote it. For this reason, simply choosing to speak publicly about the teachings or writings of a faculty member is a vexed question. In many instances, the better option may be to choose silence and to allow public discussion or debate to take its course. If the University's concerns are well founded, this may be reflected in the outcome of that debate, or in commentary by others, without the University ever having to put at risk the academic freedom of its faculty members.

This idea, among many others, is contained in a paper presented by former York University President, Harry Arthurs, to the 1995 Annual Conference of the Association of Universities and Community Colleges. Having earlier referred to academic freedom as "*a central, arguably the central value, of university life*", Professor Arthurs, as quoted in the report of Professor Thompson, addressed the circumstances in which the

administration of a university “could reasonably disagree with, condemn or repudiate” “offensive public utterances” of its faculty members:

The university’s commitment to protect academic freedom doesn’t prevent its representatives from expressing critical comments about the offensive public utterances of its members. Where those offensive utterances can be competently and aggressively rebutted by others, the university is probably well-advised to keep silent; where the offensive comments are directed towards vulnerable people with little chance to defend themselves, and especially where those people are also members of the university community, the president or other representatives of the university ought to be prepared to speak out in no uncertain terms against its own offending member.

As noted by Professor Thompson, the right to address such utterances is, of course, subject to the specific obligations imposed by Article 10.01. And, as YUFA notes, Professor Arthurs’ comments concerning “vulnerable people with little chance to defend themselves” would not appear to apply to the individuals identified in Professor Noble’s pamphlet.

The overall effect of Article 10.01 is to require the University, when fashioning a public response to the work of one of its professors, to perform a highly judicious balancing act – one that addresses its own concerns while, at the same time, upholding, protecting and promoting the academic freedom of its faculty members. This appears to have been the approach taken, for example, by the University of Western Ontario and the Council of Ontario Universities in the well known case involving Professor Philippe Rushton. The relevant events were described in one of the few arbitration awards dealing with academic freedom in this country – *University of Manitoba Faculty Association v. University of Manitoba*, dated February 11, 1991, unreported (Schulman) – as follows:

In 1989 Professor Philippe Rushton of Western Ontario, rejecting advice from superiors who requested that he not do so, appeared on a well publicized American television program and made statements to the effect that genetic science showed that black people are inferior to whites and Asians. Such statements were obviously very offensive to the black community. The Premier of Ontario demanded that Professor Rushton be fired and The London City Council censured the University. The President of the University defended on the grounds of academic freedom, Professor Rushton’s right to make the statement. He stated:

“I along with the University will argue very hard for Professor Rushton’s right to carry on his research policy.”

The University Provost stated that Rushton would not be fired, suspended or disciplined. The matter was addressed by the Council of Ontario Universities, which, on March 8, 1989, issued a statement on academic freedom and its attendant responsibilities. The statement (Exhibit 45) includes the following:

“2. Concerning the validity of Professor Rushton’s published and orally communicated research findings and theories, COU considers it no dereliction of responsibility to leave this evaluation to the judgment of those individuals-colleagues at Western, peers in other universities, similarly qualified independent researchers, who are competent to provide commentary and, if appropriate, criticism. This process has begun. It is a slow process, one easily overshadowed by other developments, and not perfect; it is likely to be more sure and just than the alternatives.

3. COU also wishes to offer comment on a third matter. This involves the beliefs and values that we cherish in Canadian society, and the threats and potential threats that can be leveled against them. Prominent among them is our respect for the human dignity of all members of our community regardless of race, creed, gender or other factors. Council applauds the senate of the University of Western Ontario for its concurrent statement on racism. While defending Professor Rushton’s academic freedom and encouraging his peers to subject his work to the rigorous scrutiny due all research, the Council of Ontario Universities deplores the insensitivity and absence of social responsibility that has accompanied Professor Rushton’s public statements and informed his vocabulary.”

This approach, taken only after the events and reactions described, was put forward by YUFA as the one to be emulated. I agree. In my view, York’s response to Professor Noble’s pamphlet failed to live up to its obligations under Article 10.01 and breached his academic freedom.

As pointed out by YUFA, the clear and unequivocal evidence in this case is that the University did not even *consider* academic freedom. This evidence was given by the University’s principal witness, Richard Fisher. Mr. Fisher is York’s Chief Marketing and Communications Officer. In that capacity, Mr. Fisher was responsible for putting together York’s response to the pamphlet. Mr. Fisher testified that he did not view the pamphlet as having any kind of “academic” aspect; he did not consider the Collective Agreement or Article 10.01; he did not consult York’s labour relations department; and, indeed, he conceded that his own knowledge of the concept of “academic freedom” was limited to what he had “picked up along the way”. (Prior to coming to York in 2002, Mr. Fisher had a successful career in advertising.) According to Mr. Fisher, this was because the University’s primary concern was with “the material” rather than its “provenance”.

Mr. Fisher testified that the pamphlet had been brought to his attention by a three person delegation from Hillel after it had been distributed at the film screening. According to Mr. Fisher, at least one of the Hillel representatives told him that she had seen Professor Noble handing out the flyer, although the actual copy she received may have come from Daniel Freeman-Maloy, who was also in attendance at the event. In addition, as regards the “provenance” of the document, two of the three Hillel representatives who came to visit Mr. Fisher also faxed a letter to Mr. Fisher and Paul Marcus, the President of the York University Foundation and a named individual in Professor Noble’s pamphlet. The

fax enclosed a copy of the pamphlet and identified its distributor as “Social Science Professor David Noble”. Further, President Marcus repeated that allegation in an e-mail to the President of the University, Lorna Marsden, which was “cc’d” to Mr. Fisher, on the same day. President Marcus’ e-mail to President Marsden reads:

“a copy of handout allegedly distributed by [blacked out] Noble at program today has now been received – Richard [Fisher] was faxed a copy directly and will send one to you tomorrow – the content is very troubling, Paul.”

Nevertheless, when pressed in cross-examination about why the University did not evaluate or investigate the pamphlet from the perspective of academic freedom, given what it had been told about its origins, Mr. Fisher repeatedly asserted that the University did not “know” that the material had been distributed by Professor Noble and, again, that the concern of the University was with the content of the document rather than its source. According to Mr. Fisher, in the University’s view, Professor Noble’s involvement remained nothing more than an allegation.

Given the existence of Article 10.01, it was an allegation that required investigation. York could not, in light of Article 10.01, seek to divorce the content of the document from its “provenance”. To do so could only mean that its prospects of “getting it right” – of achieving the right balance between the interests it was seeking to protect and those of academic freedom – could only be the product of sheer chance. For the reasons to which I will come, this was not to be.

Consistent with its lack of concern about the origins of the document, York emphasizes that the Media Release did not name or otherwise identify Professor Noble. It submits that no one reading the Media Release – except, perhaps, those few who had personal knowledge of the events – would have any idea as to who was responsible for the “material”. In my view, at least in relation to the alleged breach of academic freedom, and in the light of the surrounding circumstances, this argument is of little assistance.

There is no dispute that the distribution of the pamphlet was a potentially newsworthy event at the University. Mr. Fisher and others who testified had no difficulty placing it in the context of “middle-eastern tensions” that have existed at York. In the light of such tensions, Mr. Fisher described the pamphlet as “incendiary”.

If nothing else, it seems to me, this overheated climate should have impelled York to caution. Instead, within a period of 24 hours – a period described by Professor Noble, in my view not inaccurately, as extremely brief in a University environment – York considered (apparently at the highest levels), fashioned (with input it solicited from others) and forwarded (by e-mail) to the media, a highly condemnatory response to a document which was not yet much in the public domain. Mr. Fisher testified that the University proceeded in this fashion because it was confident that Professor Noble’s pamphlet would quickly be placed into the hands of the media by “one side or the other”. As to whether Mr. Fisher’s belief was the product of experience or specific information, we do not know. What we do know, however, is that by issuing the Media

Release York helped ensure that the pamphlet became a matter of public interest and that others – including the media to whom it sent the release – would likely seek to learn more about it, including who had authored it and why.

In this, the media and the public were greatly assisted by the efforts of the CJC, which, apparently only minutes before, issued its own press release (see above) expressly identifying Professor Noble. However this, too, should have come as no surprise to the University, if for no other reason than that Mr. Fisher spoke to Bernie Farber of the CJC on the morning of November 19, 2004, to inquire as to whether the CJC would like to participate in the Media Release. Mr. Fisher testified that Mr. Farber declined, on the ground that the CJC would not sign anything jointly with the SPHR, and added that the CJC would be making a public statement of its own. Even if Mr. Fisher did not ask or was not told precisely what it was that the CJC intended to say, it would not have been difficult to imagine it naming Professor Noble – the CJC having no employment or academic issues of its own to worry about.

Quite apart from the role played by the CJC, however, it is not without significance, as counsel for YUFA pointed out, that the University, at the end of the Media Release, gave as contact names not only its own Director of Media Relations, Nancy White, who assisted Mr. Fisher in the preparation of the Media Release, but representatives of Hillel and the SPHR – both of whom were at least as aware of the identity of Professor Noble as was Mr. Fisher and to neither of whom did the University suggest that Professor Noble *not* be identified. The following e-mail exchange between Ms. White and President Marcus, within minutes of the Media Release having been issued, gives some indication of York's approach. Writing to Mr. Fisher, with copies to presidents Marsden and Marcus, under the subject heading "Globe/Caroline is already calling", Ms. White stated:

Caroline already has the CJC release and is asking me to confirm that it's David Noble. I'm not doing so. Rather, I am stating that it was an SPHR meeting and we weren't there. Basically I'm leading them back to SPHR and CJC.

In reply, President Marcus wrote: "is she asking about the specific people mentioned?" Responding, Ms. White stated: "No, Just trying to track down Noble. She may list them in her article, however, she has the hand out. Nancy"

Consistent with evidence given by Mr. Fisher in these proceedings, Ms. White appears to have been taking the position that the University did not have *first hand* knowledge of the identity of the author or distributor of the pamphlet – no member of the York administration, presumably, having been in attendance at the SPHR event – as the basis for its refusal to "confirm that it's David Noble". However, it is clear from the e-mail, as it was from the evidence of Mr. Fisher, that the University had *substantial reason to believe* that it was Professor Noble *and* that it was directing inquiries to others who had at least that same level of knowledge. (It was this strategy which counsel for YUFA repeatedly characterized in final argument as the "Monty Python nudge, nudge, wink,

wink” approach of the University.) Indeed, Mr. Fisher conceded in cross-examination that he understood that, if asked, the Hillel representative who had been named as a contact person in the Media Release might well identify Professor Noble.

In my view, therefore, even if York *itself* was careful not to name or provide any clues as to the identity of Professor Noble in the Media Release – keeping in mind that, according to Mr. Fisher, it was not so much a matter of care as disinterest – it had reason to believe that others might do so and, in that way, that its comments about “the material” might very well become associated with *Professor Noble’s material*.

Turning to the substance of the Media Release and its relationship to academic freedom, I note that the University – to its credit – does not seek to place any distance between itself and those whom it quotes. The University, quite properly, appears to recognize that it is its own Media Release and, as such, that it bears complete responsibility for its contents. For purposes of the present issue, this means that the implied allegations of racism and bigotry that appear in the quotations in the Media Release come with York’s imprimatur.

In considering the effect of the statements contained in the Media Release, I note that Mr. Fisher, correctly, disagreed with the suggestion by counsel for YUFA that York described the material as “anti-semitic” – that term having been employed by the CJC. However, Mr. Fisher went on to state that he viewed the distinction between “anti-semitism”, on the one hand, and “racism” and “bigotry”, on the other, as significant because, in his assessment, “sanity leaves the room” when the term “anti-semitism” is used. While there may be something to this linguistic analysis, I take less comfort from it than, apparently, did the University. It seems to me that if “sanity leaves the room” when the term “anti-semitism” is used, it must at least be given an escort when the words “bigotry” and “racism” towards “Jewish members of the York Community” are used.

Support for the seriousness of an allegation of racism can be found in the law of defamation. The following comments of Low J. in *Fitzpatrick-Smith v. Jacobson* [2000] O.J. No. 860 (Ont. Sup. Ct. J.) (Q.L.) at pp. 708 are instructive:

7. Each of the letters and each of the voice mail messages is a separate cause of action. No innuendoes have been pleaded. The threshold question for each cause of action is whether the publication is defamatory. The sting in the two letters lies in the words: “Racism, discrimination, and harassment”. Of the three, the term “racism” is, in my view, the most serious allegation. The defendant argues that the term “racism” is not necessarily defamatory and I have been referred to two decisions from the United States, *Stevens v. Tillman*, 855 F.2d 394, and *Ward v. Zelikovsky*, 136 N.J. 516 A.2d 972. In *Stevens v. Tillman*, Justice Easterbrook of the Seventh Circuit of the United States Court of Appeals stated, “Accusations of ‘racism’ no longer are ‘obviously and naturally harmful’”. The word has been watered down by overuse, becoming common coin in political discourse.” The term was held therefore not to be defamatory.

8. I decline to follow these American decisions. While in recent decades, the dissemination of information and the transnational migration of culture has blurred the borders between Canada and the United States, I am not persuaded

that in our culture, an allegation of racism has become such common coinage that the term has lost its sting or that the word has been so neutralized as not to diminish the regard that a reasonable person in this country would have for one to whom the term is applied. It is perhaps a uniquely Canadian attribute to place a high value upon tolerance, particularly tolerance in matters of racial and religious diversity and perhaps that is a value not shared to equal degree by some of the United States. I am satisfied, however, that in this country and at this time, it is a serious charge to say of a person that he or she is a racist or that he is guilty of racism. It is clear in any case from the tenor of both letters and of the numerous telephone messages that the words used by the defendant meant that the plaintiffs had been guilty of highly egregious conduct, conduct worthy of censure. I find both letters defamatory. I also find all of the voice messages, with the exception of that of June 23, to be defamatory in their natural and ordinary meaning.

[To similar effect are comments of Loo J. in *Kovlaske v. International Woodworkers of America-Canada, Local 1-217*, [1999] B.C.J. No. 2326 (B.C.S.C.)(Q.L.) at p.10. See also *Wagner v. Lim*, [1994] A.J. No. 637 (Alta. Q.B.) (Q.L.) and the cases cited at para. 70.]

If a charge of racism can be defamatory, and there is no doubt in my mind that it can, it seems clear that a charge of racism and bigotry leveled, if only implicitly, by a university against the *work* of one of its own professors would tend to diminish rather than uphold, to attack, rather than protect, and to frustrate rather than promote, academic freedom.

The University submits, however, that the Media Release had no practical effect on any of the matters covered by Article 10.01 and that it was a “one-time event”. It submits that Professor Noble continued to speak, write and teach on the same issues, in an apparently unrestrained fashion, after the publication of the Media Release as before. While I would not disagree with these assertions as evidentiary matters (with the *possible* exception, identified by Professor Noble, that his *opportunities* to speak at certain conferences, or to have his work published, *may* have been adversely affected), as a legal matter I do not see them as having the effect suggested by the University.

The question of the University’s compliance or non-compliance with Article 10.01, it seems to me, cannot depend upon whether the employee has seen fit to carry on, or has been able to carry on, academically, after the impugned conduct as before. Where a breach of an employee’s rights under Article 10.01 is asserted, the University cannot rest its case, in whole or in part, on the strength of an employee’s convictions, character or commitment to his or her work. The University does not live up to its obligations under the Article, or escape liability for conduct which would otherwise appear to fall short of its terms, by arguing that the employee continued in his or her academic endeavours notwithstanding. Taken to its logical conclusion, the University’s argument would mean that it could say or do what it pleases, without fear of a breach of Article 10.01, so long as the employee was practically undeterred. In my view, Article 10.01 cannot operate in that fashion.

The test, at minimum, is whether the action or actions of the University are such as would tend to discourage the average employee of reasonable fortitude and conviction from engaging in a particular academic pursuit. It is not incumbent upon the Association, when asserting a breach of the Article, to show that it actually *had* that effect on the given employee or, indeed, on any employees. It is enough if the step or steps taken by the University could reasonably be seen as having that effect even if they did not actually do so in the circumstances of a given case. While the absence of any practical effect on the employee's activities may be of significance to the question of remedy, it cannot preclude a finding of breach.

In the circumstances of this case, I find that the University breached Article 10.01. Notwithstanding that Professor Noble saw fit to carry on with his research, teaching and writing after the Media Release as he had begun to do before, it is clear that York failed to live up to the obligations imposed by the Article. The implied accusations of racism and bigotry, and the implicit suggestion that no student should be exposed to the kind of material which Professor Noble had produced, were a clear violation of his academic freedom.

Article 3.01

In addition to the alleged breach of Article 10.01 of the Collective Agreement, YUFA asserts a breach of Article 3.01. Under the heading "Non-Discrimination", Article 3.01 provides:

- 3.01 The parties agree that there shall be no discrimination, harassment, interference, restriction, or coercion exercised or practiced with respect to any employee in any matter by reason of race, creed, colour, age, sex, marital status, family relationship, number of dependents, nationality, ancestry, place of origin, place of residence, political or religious affiliation or beliefs, sexual preference or orientation, nonconforming personal behaviour, disability, nor by reason of membership or non-membership in the Association, nor previous or impending exclusion from the bargaining unit, nor lawful activity or lack of activity in the Association. "Non-conforming personal or social behaviour" shall not include failure to conform to the terms of this Agreement or to carry out the duties and responsibilities stipulated herein.

Referring to this provision, YUFA submits that Professor Noble was "discriminated" against, "harassed", "interfered" with, "restricted" or "coerced" on the basis of his "political beliefs" or "non-conforming personal behaviour".

I agree with the submission made by University counsel that this part of the case – although perhaps more prominent in the form of the original grievance – was not highly developed at the hearing. The strong focus of the evidence and arguments, insofar as the

alleged breach of the Collective Agreement was concerned, was, quite properly, on academic freedom. For this reason, and because even if the alleged breach of Article 3.01 had been more prominently pursued *and* established on the facts it would not have caused me to award any different remedies from those which I have decided to award, I see no need to address it.

Defamation

Background

In addition to the alleged violations of the Collective Agreement, YUFA asserts that Professor Noble was defamed by the Media Release. As noted at the outset of this award, the defamation claim was the subject of a preliminary motion by the University that I lacked jurisdiction. As also noted, I dismissed that motion in a decision dated December 9, 2005. The parties then called their evidence and made their submissions accordingly.

In final argument, however, referring to the reasons of the Court of Appeal in *Ontario Public Service Employees' Union and Seneca College of Applied Arts & Technology et al.* (2006), [2006 CanLII 14236 \(ON CA\)](#), 80 O.R. (3d) 1, the University argued *not* that the defamation claim was beyond the scope of my jurisdiction but that, absent a defamation clause in the Collective Agreement, I should find that the parties did not intend claims for damages arising out of the “common law tort of defamation” to be dealt with under the terms of the Collective Agreement.

For the reasons to which I will come, I find it unnecessary to rule on this additional argument. In my view, the defamation claim fails on its merits.

Submissions

Both parties referred to Raymond E. Brown, *The Law of Defamation in Canada*, 2nd ed., looseleaf (Toronto: Carswell, 1999) (hereinafter referred to as “*Brown*”) in support of various aspects of their arguments. At paragraph 1.5, page 1-31, *Brown* describes the “interests protected” by the law of defamation as follows:

The law of defamation protects a person’s reputation from defamatory falsehoods. That reputation is the one the person has, not what he or she deserves. A publication is considered defamatory if it has the tendency to lower that reputation in the estimation of reasonable persons in the community.

In order to succeed in a defamation claim, the parties agree, three things must be proven:

1. That the words about which the plaintiff complains are defamatory;
2. That they referred to the plaintiff; and
3. That they were published to a third person.

(See *Brown* at para 1.5, page 1-35).

In this case, the University concedes publication. However, it disputes the existence of the first two requirements. In addition, the University relies on the defence of “fair comment”.

Referring to the first passage quoted above, YUFA begins its submissions by noting that there is nothing to suggest that Professor Noble has anything but a high reputation in the community. It asserts that the words used in the Media Release would have the clear “tendency to lower that reputation in the estimation of reasonable persons in the community”.

YUFA points out that the audience for the Media Release was the world at large. The Media Release was placed on the internet and forwarded to several of the major news organization in the country and to certain special interest publications that cater to the Jewish community. YUFA submits that the allegations contained in the Media Release were presented as fact, not opinion, and in a condemnatory manner. It claims that the Media Release was defamatory on its face and by innuendo. In YUFA’s submission, the words “racism” and “bigotry” are *ex facie* defamatory and no meaningful distinction can be drawn between comments on the material and comments on Professor Noble: the average or ordinary reader would read those comments as comments on Professor Noble as well.

Referring to *Brown* at paragraph 6.1, page 6-2, YUFA submits that the defamed individual need not be named in the publication provided “the words used, or the circumstances attending the publication are such as, would lead reasonable persons to understand that it was the plaintiff to whom the defendant referred.” Here, YUFA notes, a number of people had actual knowledge of the author of the material and others would quickly come to know his identity as a result of the “nudge, nudge, wink, wink” strategy employed by the University. YUFA submits that it is also reasonable to assume that students in Professor Noble’s classes in which the pamphlet had been distributed would associate the Media Release with him. Finally, YUFA relies on the fact that York maintained, and continues to maintain, the Media Release on its web-site and submits that it is liable for the re-publication of aspects of the Media Release in the newspapers. To the extent that York asserts that the content of the newspaper articles differed from the terms of the Media Release, YUFA notes that it took no steps to correct them or the impression they created. By way of remedy, YUFA asks for compensatory, aggravated and punitive damages.

As noted, the University submits that the basic elements of a defamation claim are not present and that the Media Release constitutes “fair comment”. The University notes, firstly, that the Media Release did not identify Professor Noble either directly or indirectly. According to the University, there are two parts to the “identification” requirement. Expressed as questions, the first is whether the material, as a matter of law, can be read as referring to *Professor Noble*. The second is whether the material, as a matter of fact, would lead reasonable people who know Professor Noble to the conclusion

that it refers to *him*. The University submits that the test is objective and both questions must be answered in the affirmative in order for the claim to succeed. In this case, the University submits, both questions must be answered in the negative and, accordingly, the claim must fail. The average or reasonable reader – even those acquainted with Professor Noble – could not read the Media Release as referring to him or, indeed, to anyone.

Second, the University disputes that the words used in the Media Release were defamatory. York submits that, in order to be actionable, the words must be capable of being understood in a defamatory sense. Whether words are capable of being reasonably understood in a defamatory sense depends upon the impression that would be formed in the mind of the average and fair-minded reader from the document as a whole. York submits that this requirement, too, is not present because the Media Release commented on the “material,” rather than on the author or distributor of that material, who was nowhere identified.

Third, York relies on the defence of “fair comment”. It submits that the words contained in the Media Release were fair comment, made in good-faith, without malice, on a matter of public interest. To the extent that the Media Release contains statements of fact (*eg.* that “material” was handed out on campus without notice), York submits that they are true and to the extent that it contains statements of opinion, York submits that they are fair and reasonable. The University notes that the defence of fair comment is available *even if* the words used in the Media Release could be read as defamatory. The issue was clearly one of public interest – York is a publicly funded University and Professor Noble’s pamphlet commented on York and its operations – and the Media Release constituted a fair expression of opinion on that material.

York submits that it cannot be held liable for the newspaper articles. The content of those articles was significantly different from the terms of the Media Release – among other things, they named Professor Noble – and the articles themselves were the voluntary acts of free agents over which the University exercises no control.

Finally, York disputes the assertion that Professor Noble has suffered any damages and, further, that there would be any case for an award of aggravated or punitive damages. With respect to the defence of fair comment, YUFA replies that the Media Release was not “fair”, that it was not “comment”, and that it was not a “statement of opinion on facts truly stated”. YUFA points out that the Media Release did not accurately describe Professor Noble’s pamphlet and that it made a number of assertions, as facts, not as opinions, about its alleged contents. YUFA submits that in order to comment fairly on facts – which is the essence of the defence of fair comment – those facts must be properly stated and the opinions must be separated from the facts. In this case, YUFA submits that the Media Release contained statements of opinion disguised as facts, or untrue facts, which are not protected by the defence of fair comment.

Identification and Defamatory Words

The essence of the identification requirement is that the defamatory statement be published “of and concerning the plaintiff”: see *Brown* at para. 1.5(2)(a), p.1-33. In the seminal case of *Knupffer v. London Express Newspaper Ltd.*, [1944] A.C. 116 at 121 (H.L.), Viscount Simon stated:

There are two questions involved in the attempt to identify the appellant as the person defamed. The first question is a question of law – can the article, having regard to its language, be regarded as capable of referring to the appellant? The second question is a question of fact, namely, does the article in fact lead reasonable people, who know the appellant, to the conclusion that it does refer to him? Unless the first question can be answered in favour of the appellant, the second question does not arise, and where the trial judge went wrong was in treating evidence to support the identification in fact as governing the matter, when the first question is necessarily, as a matter of law, to be answered in the negative.

The *Knupffer* case has been approved and applied in this country and in this province: see eg. *Arnott v. College of Physicians and Surgeons of Saskatchewan*, [1954 CanLII 60 \(SCC\)](#), [1954] S.C.R. 538 and *Grant v. Cormier-Grant et al* (2001), [2001 CanLII 3041 \(ON CA\)](#), 56 O.R. (3d) 215 (C.A.). However, it should not be understood from the foregoing passage that the question of identification must be determined solely by reference to the terms of the publication and without regard to the surrounding circumstances. In *Sykes v. Fraser*, [1971 ALTASCAD 16 \(CanLII\)](#), [1971] 3 W.W.R. 161, for example, the Alberta Court of Appeal observed that Viscount Simon’s first question was “more clearly expressed” in the reasons of Lord Porter as follows:

Whatever the tribunal, the first question is: Are the words in conjunction with the relevant circumstances reasonably capable of being understood to apply to the appellant.

Or, as Clement J.A. put it in *Sykes*, “to deny on the first question of law, propounded by Viscount Simon, the evidentiary value of circumstances which can and must affect the perception of every reasonable man, would in my view deny justice”: *supra*, at para 20. Nevertheless, the question remains an objective one: whether “the words used, or the circumstances attending the publication are such as, would lead reasonable persons to understand that it was the plaintiff to whom the defendant referred” (see *Brown* at para. 6.2, p. 6-2).

In this case, it is obvious that Professor Noble was not named or in any way referred to in the Media Release. The subject matter of the Media Release, as was conceded by more than one YUFA witness in cross-examination, was exclusively the “material”. Having said that, the fact that a publication comments upon an individual’s work product rather than upon the individual him or herself does not mean that it is incapable of being defamatory: see eg. *Andrews v. John Fairfax/Sons Ltd.*, [1980] 2 N.S.W.L.R. 225 (C.A.). For this reason, I reject what I understand to be the University’s second argument viz. that

the words used in the Media Release cannot reasonably be understood in a defamatory sense because they comment upon the “material” rather than Professor Noble. The case law establishes that the words “racism” and “bigotry” are, according to their ordinary and natural meaning, defamatory; the fact that they are used to describe “material”, rather than its author, does not make them any less so. However, the fact that the Media Release refers exclusively to the material and not at all to Professor Noble is relevant to the University’s first argument viz. that the Media Release was not “of and concerning” *Professor Noble*.

This case is quite unlike two to which YUFA referred in attempting to rebut what it characterized as York’s “material vs. person” argument. In the first case, *Andrews v. John Fairfax/Sons Ltd.*, *supra*, an architect and his firm were found to have been defamed by false criticism of a building which they had designed. However, the connection between the building and those responsible for it appears to have been recognized as firmly established in the public mind “because of the eminence of the architect and of the originality of the design”. There is no such evidence here. In the second case, *Angle v. LaPierre*, [2006] A.J. No. 304 (Alta Q.B.), a school principal was found to have been defamed by allegations of “racism” used to describe a school program which he had supported. According to the Court, “the clear inference” from the words used was that “the person supporting such programs is racist ...” However, in *Angle*, unlike the present case, the principal was *named* alongside a description of the impugned program to which *he* had also been described as having transferred money “to benefit a handful of kids”. Once again, no such facts are present in this case.

However, *even if* the Media Release could be read as critical of the author or distributor of the material rather than of the material alone, it remains the case that the author or distributor is not named and no clues are provided as to his or her identity. Indeed, there is nothing in the terms of *either* document – the one which is alleged to be defamatory and the one which was the subject matter of the allegedly defamatory publication – to identify Professor Noble. Professor Noble’s own pamphlet was unsigned and makes no mention of the author’s status or, for that matter, of any academic courses. As a result, even if the average or ordinary reader had the Media Release in one hand and Professor Noble’s pamphlet in the other, he or she would still be unable to read the terms of the Media Release as referring to *Professor Noble* or to anything *he* had done. The Media Release, in other words, preserved the very anonymity that was a feature of Professor Noble’s own writings.

As a result, if a case for the identification of Professor Noble is to be made it must emerge almost entirely from the surrounding circumstances. A good illustration of the kinds of circumstances that come into play in such cases (and of the proper legal basis for considering the fact that the University’s comments were upon the “material” rather than Professor Noble) is provided by a decision of the British Columbia Supreme Court in *Dale’s Trad’N Post Ltd. et al. v. Rhodes et al.*, [1987] B.C.J. No. 296, a case relied on by York. In *Dale’s*, a couple who were dissatisfied with a fireplace insert which they had purchased and had installed in their home appears to have decided to exact their revenge by taking out two classified advertisements in the local newspaper. The first

advertisement purported to offer the “Arrow Fireplace Insert” for sale, described it in damning terms and identified it as having been “locally purchased”. The second advertisement, which also referred to the “Arrow Fireplace Insert”, announced an “open house” for people to come and see “how [it] was installed by local vendor”. The latter ad also spoke of “poor quality and workmanship” and suggested that the insert might endanger lives. The store and its owners that had sold and installed the insert, together with the manufacturer, sued the purchasers for libel.

Addressing the first part of the *Knupffer* test, the Court stated:

I turn back then to the first stage of Viscount Simon’s test which is to determine whether the words in the advertisements are capable of referring to each of the plaintiffs, or, to use the approach taken by Lord Porter in *Knupffer* at page 499 of (1944) 1 All E.R. “whether there is any evidence upon which a conclusion that they do so refer could reasonably be reached”.

The evidence before me shows that the plaintiff Dale’s was a local vendor in Prince George which offered for sale, sold, and installed the Arrow Fireplace Insert. At the time of the publication of the advertisements Dale’s was the only vendor of those inserts in the Prince George area. The plaintiff Dale Steward was the manager and major shareholder of Dale’s and the person who acted for Dale’s when the company sold the Arrow Fireplace Insert to the defendants. No innuendo is pleaded in the Statement of Claim and although I doubt that the words refer to a person or persons as distinct from the Insert or its installation, I have concluded that there is some evidence upon which it might be concluded that the words are capable of referring to each of the plaintiffs Dale’s and Steward.

I have more difficulty in determining whether there is any evidence to show that the words in the advertisements were capable of referring to Heatilator Inc.

Heatilator Inc. is a company with offices in Iowa. It manufactured Arrow Fireplace Inserts and supplied to Graman Distributors Ltd. which in turn supplied them to Dale’s. The evidence is not entirely clear that it was Heatilator Inc. which manufactured the insert which was supplied to the defendants because of some uncertainty over the date of the manufacture of that particular insert. There is no evidence that Heatilator Inc. carried on business in the Prince George area. The wording of the first advertisement may be read to mean that the Arrow Fireplace Insert which has been locally purchased has a proven record of chimney fires. There is no statement in the advertisement connecting the record of chimney fires to Heatilator Inc. In my opinion there is no evidence to show the words in this advertisement were capable of referring to Heatilator Inc.

The words complained of in the second advertisement namely “poor quality and workmanship” follow the words “see how ours was installed by local vendor”. This complaint is directed to the installation by a local vendor. The words “poor quality material and workmanship” is also directed to that installation. There is nothing in this wording connecting the advertisement to Heatilator Inc.

I have therefore concluded that there is no evidence upon which to reasonably conclude that the advertisements were capable of referring to Heatilator Inc.

In this case, the University submits that Professor Noble stands in the position of Heatilator Inc.; that is, that there is nothing in the wording of the Media Release, even when read in light of the surrounding circumstances, upon which one could reasonably conclude that it referred to *him*. In the alternative, the University submits that even if Professor Noble stood, for example, in the position of Dale's rather than Heatilator in respect of the first question, the claim must fail on the second branch of the *Knupffer* test: reasonable people, including those who know Professor Noble, would not, in fact, be led to the conclusion that the Media Release referred to him.

Returning to the analysis in *Dale's*, after referring to another decision of the British Columbia Supreme Court (in *Halprin v. The Sun Publishing Company*, [1978] W.W.R. 685, which was also relied on by the University here), the Court addressed the second part of the *Knupffer* test as follows:

Although the facts in the case at bar are very different from the facts in *Halprin*, the reasoning adopted by Mr. Justice Anderson is instructive and I take a similar approach. The language of the first advertisement is critical of the Arrow Fireplace Insert and the language of the second advertisement is critical of the Insert and its installation, material and workmanship. The language is thus critical of the Insert itself, and its installation rather than being critical of the particular person who manufactured, sold, or installed it. I am thus left in doubt that this language would lead an average reader to reasonably conclude that either Dale's or Steward was referred to in the advertisements.

This passage does two things. First, it reveals the appropriate legal basis for considering the facts relied on by York that the words used in the Media Release were "of and concerning" the material rather than Professor Noble; second, in addressing the second part of the *Knupffer* test, it relies on the facts underlying that distinction to conclude that the average or reasonable reader – even those acquainted with the plaintiffs in that case – could not read the advertisements as referring to them.

Indeed, as was pointed out by the University in this case, the Court in *Dale's* arrived at the latter conclusion notwithstanding the evidence of two witnesses who testified that they had read the advertisements and understood them as referring to Dale's and its owners. The Court stated:

The evidence of Mrs. Steward or Mr. Mantz does not overcome the doubts I have that the language would lead the average reader to think that either Dale's or Steward was referred to because each witness was in a special relationship to each of those plaintiffs and could not be said to be reading the advertisements through the eyes of the average reader.

This conclusion is, perhaps, unsurprising, given the facts that the witnesses in question were, first, the business partner and wife of the owner of Dale's, as well as being a shareholder in Dale's and, second, a close business associate of the owner of Dale's.

However, the *Halprin* decision, to which the Court referred in *Dale's*, is also instructive on these points. In *Halprin*, the Court found that the average or ordinary reader would not have read an article in a newspaper which attacked the handling of a particular prosecution by the "Department of Justice" as an attack on the *particular prosecutor*. As noted in *Dale's*, the Court reached this conclusion notwithstanding the evidence of nine witnesses who knew the plaintiff/prosecutor (as friends and/or business associates) who testified that they had read the reference in the article to the "Justice Department" as a reference to him. In the view of the Court, the witnesses were "so close to the plaintiff" that they would have seen the particular prosecution "as a contest between the plaintiff and [the accused] ... whereas the average reader, even with knowledge that the plaintiff prosecuted [the accused] would probably approach the matter in the context of the Article as a whole (as an attack on the Minister of Justice and our extradition laws)."

The University relies on these and other cases as an accurate description of the present case. The average or ordinary reader, even in the light of the surrounding circumstances, and even those who know Professor Noble, could not reasonably read the Media Release as referring to him. I agree. Unlike *Dale's*, *supra*, or *Halprin*, *supra*, for example, where *no defamation was found*, there is not even the equivalent of a reference in the body of the allegedly defamatory document to a "local vendor" or the "Department of Justice" and a particular prosecution. And, of course, no witnesses who had not previously seen the Globe and Mail article or the CJC release identifying Professor Noble gave evidence that they had read the Media Release as referring to *him*.

The Association submits, however, that even without such assistance in the body of the Media Release (or, one supposes, in Professor Noble's own pamphlet), Professor Noble's identity as the author of the material was going to *become* known (as it already was to a limited number of people) and, indeed, that York assisted in that process through what YUFA describes as the University's "nudge, nudge, wink, wink" strategy (see above). While I have relied on at least some of the facts underlying these assertions in support of the conclusion that York breached Professor Noble's academic freedom, I am unable to find that they make out a case for defamation.

A finding of defamation requires that the average, ordinary or reasonable reader be able to read the publication, albeit in the light of the surrounding circumstances, as referring to, or as being "of and concerning", the plaintiff. In my view, the Media Release is not reasonably capable of being so read in respect of Professor Noble. (To continue the references to the case law, if only briefly, the facts in this case are quite unlike those in *Sykes*, *supra*, a case relied on by YUFA. In *Sykes*, among many other things, the comments were clearly addressed to *someone* rather than *something* and included a form of description which had previously been established in the media as applicable to the plaintiff.) The Media Release commented upon *material* that had been handed out on campus and made no mention, nor provided any hints as to the identity, of its author. Nor

was such information available to the average, ordinary or reasonable reader. The fact that such a reader would come to know the identity of the author through the actions or contributions of others, such as the CJC, the Globe and Mail and, indeed, Professor Noble when questioned by Caroline Alphonso of the Globe and Mail, is not something that can be brought home to York within the law of defamation. It does not render the original publication of and concerning Professor Noble.

And, to be clear, I do not interpret the evidence as supporting the conclusion that York engineered, or attempted to engineer, Professor Noble's identification by others or that such identification was, in any sense, part of York's "agenda". I accept the evidence of Mr. Fisher that York was motivated solely to address the anticipated effects of Professor Noble's *material*. Pursuing that objective, however successfully or unsuccessfully, did not require it to, nor did it actually, identify or comment upon the party responsible for that material. While, in my view, the evidence does establish that York was not particularly (and, for purposes of its Collective Agreement obligations, *adequately*) concerned about whether Professor Noble's identity as the author or distributor of the "material" became known, that is not sufficient to satisfy the requirement of identification in defamation.

The claim for defamation is, accordingly, dismissed.

Fair Comment

In view of the foregoing conclusion, it is unnecessary for me to determine the availability of the defence of fair comment. However, given the time and effort devoted by the parties to the facts and arguments underlying this defence, a few remarks may be in order.

The defence of fair comment is described in *Brown* as the "repository within the law of defamation of the values of freedom of speech": para. 15.2, p. 15-10. In order to make out the defence, the defendant must establish that the words used were: (1) comment; (2) based upon facts that are true; (3) made honestly and fairly; (4) without malice; and (5) on a matter of public interest: see *Brown* at para. 15.1, p. 15-18.

Implicit in the third and, perhaps, second requirement, is the need for the defendant to provide an adequate and accurate description of the facts upon which the comment is based. This is to enable the reader to be able to make his or her own assessment of the fairness of the comment: see *eg. Baltrop v. Canadian Broadcasting Corporation* (1978), 86 D.L.R. (3d) 61 (N.S.C.A.) and *Myers v. Canadian Broadcasting Corporation* (1999), 47 C.C.L.T. (2d) 272 (Ont. S.C.).

At paragraph 15.1, page 15-2, *Brown* states:

A comment is the subjective expression of opinion in the form of a deduction, inference, conclusion, criticism, judgment, remark or observation which is generally incapable of proof. In order to be fair, it must be shown that the facts upon which the comment is based are truly stated and that the comment is an honest expression of the publisher's opinion relating to those facts.

In this case, both parties examined each and every sentence of the Media Release for statements of fact and opinion. The objective, from YUFA's point of view, was to establish that the two were not clearly separated – that what was in the nature of *opinion* had been put forward as *fact* – and that *insufficient true facts* were provided to support the making of any comment.

Chief among the areas of disagreement was whether the material “targeted” or “singled out” Jewish members of the York community or members of the York community on the basis of their *ethnicity* and alleged political views: from the perspective of this defence, were these, as submitted by YUFA, statements of “opinion disguised as fact” and unsupported by the provision of any real facts.

As noted in my comments at the outset of this section, it is unnecessary for me to resolve the legal question raised here. I would observe, however, that even as statements of *opinion* they are ones which would appear to be at least arguably supported by the facts – even if those facts were not provided in the Media Release.

A great deal of evidence was given by Professor Noble about how he chose the names and information set out in the pamphlet. Professor Noble pointed out that he had used the identical information that was found, in most instances, in the individuals' biographical sketches on the Foundation's web-site and that he had used that information “in exactly the same manner”. As a result, Professor Noble stated, “if someone was to infer from that information that this was attacking people on the basis of their ethnicity, the same inference would have to be made from their own web-site”. Professor Noble characterized this as “an absurd suggestion in both cases.” Further, insofar as the question of Jewish identity was concerned, the thrust of Professor Noble's evidence was that it was both unknown and irrelevant; his concern was with the link to pro-Israel causes. The fact that the pamphlet did not single out or target Jews, YUFA submitted in argument, was evident from, among other things, the *inclusion* of a number of non-Jews on the list, the *exclusion* of a number of Jewish members of the Board from the list (*i.e.* those without any apparent pro-Israel affiliations), and the failure to mention at least one additional “Jewish related organization” with which at least some of the named individuals were explicitly affiliated – the Baycrest Centre.

Addressing these points in order, the first and most obvious observation is as to the importance of context. It is one thing to include references to an individual's charitable, volunteer or community relationships, even those of a religious or “ethnic” nature, as part of a biographical sketch for a fund-raising body of which the individual is a member together with others from seemingly different religious or “ethnic” groups; it is quite another to tease out from that broader list of individuals almost all of those from one *particular* religious or ethnic group and then to display that information in a leaflet visibly dominated by members of that group as part of the suggestion that the fund-raising body is biased by their presence, or by the nature of those relationships, and that that bias is, improperly, reflected in the administrative decision-making of the public

institution for which they are seeking to raise funds. This observation assumes, of course, that when stating that the information had been used “in exactly the same manner”, Professor Noble was doing something more than adverting to the way in which it was *displayed* or *laid-out* on the Foundation’s web-site.

Further, it would appear from the structure of the pamphlet that the individuals who were named who are *not* Jewish appear in connection with the Argonaut football stadium deal – a separate question from that of either Jewish identity or pro-Israel causes. In other words, insofar as the pamphlet is about pro-Israel causes, it would appear to be *exclusively* about at least *most* of the Jewish members of the Board of Directors. And, while it is true that the pamphlet does not name *all* of the Jewish members of the Board (there were, it was established, two omissions), the assertion that it was *exclusively* about apparent links to pro-Israel causes and not at all about Jewish identity would appear to be undermined, at least in part, by the repeated references to the Mount Sinai Hospital Foundation (“MSHF”) – a hospital with widely known links to the Jewish community but without any such apparent links to pro-Israel causes.

Finally, at least when viewed from the perspective of the average reader, the most obvious feature of the pamphlet is that the vast majority of the listed individuals (*i.e.* those other than Joseph Sorbara, who is included in connection with the Argonaut Football stadium deal, and Lorna Marsden, who is included as the President and Vice-Chancellor of the University) would appear to be Jewish. This would include both Maxwell and Judith Cohen, who, as stated by Professor Noble, were included not because of any apparent link to pro-Israel causes but to establish the interlock between the Foundation’s Board of Directors and the University’s Board of Governors. However, this reason for their inclusion, it seems to me, although at least in the former case expressly mentioned in the pamphlet itself, would likely be much less noteworthy to the average reader than would be their apparently shared “ethnicity” with all but two of the other individuals named on the list – perhaps even without the repeated references to Jewish organizations or groups. The same, of course, would be true of the fact that two Jewish members of the Board were *not* named.

I would point out, however, that the preceding paragraph contains a characterization with which Professor Noble categorically disagreed. In cross-examination, Professor Noble refused to find *any* merit in the suggestion, at least without some further definitional assistance from counsel which was not forthcoming, that individuals had been named in connection with “Jewish groups” or “Jewish community groups” – a reading of his material which appeared to commend itself not only to Caroline Alphonso in the Globe and Mail article quoted above, and to the author of a similar piece in the York student newspaper “Excalibur” a few days later, but to one of YUFA’s own witnesses, Mario Godlewski, as revealed in cross-examination. Professor Noble described this as an “idea” that was in University counsel’s “head”, not his own and, implicitly at least, as wrong or misleading – the exclusive criteria, as, presumably, should have been abundantly clear to all, having been *pro-Israel* groups.

Finally, I note that I found certain additional aspects of Professor Noble's evidence at least somewhat disingenuous. As part of the same exchange, University counsel asked, "look at page two [of the pamphlet], whether you *intended* to make any such connections, *in fact* their ethnicity is Jewish?" To this Professor Noble replied, "I have no idea what you're talking about – how do you know that?" University counsel continued, "you mean you don't have *any idea* about their ethnicity?" In reply Professor Noble somehow (perhaps only by taking the same epistemological approach as was later adopted by Mr. Fisher concerning York's "knowledge", or lack thereof, as to the identity of the author of the pamphlet) managed to state, in the present tense, two years after the fact, "I have no idea, nor would I know how to infer it."

A more candid and accurate treatment of this question, it seems to me, is that which was provided by Malcolm Blincow, a Professor of Anthropology at York, who also testified for YUFA. Professor Blincow, while expressing "horror" and "outrage" at York's treatment of Professor Noble, stated that "it is impossible to conduct scholarly research and to speak about politics in our everyday lives without bringing in the factor of ethnicity"; "it is impossible", in the words of Professor Blincow, "to consider politics anywhere in the world without taking into account religion, class, age, ethnicity – as a key element – and gender". Indeed, Professor Blincow stated, "the entire field of political sociology would not be possible" without the ability to draw such links. All of these rather obvious truths were ones which Professor Noble, perhaps only in his stated commitment to the purity of his work, or perhaps simply arising out of the opportunity to have his say or joust with counsel, seemed unwilling to acknowledge.

In making these observations, I note, as well, that I have not disregarded the assertion, which was prominent in this case, that the language of "racism", "bigotry", and "anti-semitism", and the "conflation of anti-zionism with anti-semitism", are tools utilized by the "pro-Israel lobby" to attempt to shut down legitimate criticism of the policies of the state of Israel. Further, I am cognizant of the fact that the pamphlet was written by a university professor and distributed in an academic setting rather than to a more general audience. However, even without York's particular response to the pamphlet, it was unlikely to remain in that setting and the pamphlet certainly does not display the hallmarks of a typical academic piece; rather, even as "suggestions for further research", it appeared to be somewhat more in the nature of a polemic.

Given these factors and, of course, the highly charged context of the times, it seems to me that the author of any such material would need to be extremely circumspect about its contents and about the impression that it may well create – about what is included, what is not included, what is intended, what is not intended, and the rationale for each. Perhaps not completely unlike York's response to the pamphlet, the requisite degree of care or, perhaps, judgement, seems not to have been exercised.

Thus, at least as a matter of opinion, and regardless of Professor Noble's expressed intentions, there would appear to be at least some basis for the view expressed in the Media Release that the material did "single out" or "target" Jewish members of the York community, at least in part, on the basis of their ethnicity. As to whether that made the pamphlet properly susceptible to the other specific comments contained in the Media Release, none of which, I am certain, are consonant with Professor Noble's actual views or character, is a question that need not be explored.

Conclusion

As should be clear from the foregoing, I am of the view that neither York nor Professor Noble behaved as they should. Professor Noble engaged in behaviour which he could reasonably have anticipated would elicit a strongly negative response from the University. (And, to that extent at least, I must discount certain of the evidence he gave concerning his reaction to the resulting controversy, *eg*, that he was "awakened" to the "larger size of the events" by certain of the telephone calls of support he received, particularly from two politicians.) While the specific response that was in issue here – a Media Release that was harshly critical of his work by his own University, unleavened by any recognition of his right to academic freedom (an admittedly difficult feat where the author is not named) – may well have been beyond his or, indeed, any reasonable contemplation, Professor Noble was clearly not without responsibility in this affair.

Having said that, the fact remains, as detailed in the first part of this award, that York breached Article 10.01 of the Collective Agreement by failing to respect Professor Noble's rights as an academic. Indeed, it may be said that York failed to extend Professor Noble even the most basic of courtesies that might reasonably be expected to be enjoyed by a faculty member. The University publicly vilified his work without first contacting him or YUFA to advise of its concerns, to investigate the matter, or to indicate what it was contemplating. Had it done so, it is at least possible that much, if not all, of what ensued could have been avoided.

And, lest there be any doubt on the point, I do not view Professor Noble and York University as standing in the same position in respect of their actions. Professor Noble handed out a two-page flyer to a number of people on campus, at least in part, as a scholarly exercise and in accordance with his Collective Agreement rights. York, by contrast, issued a two-page Media Release to several of the major news organizations in the country *and* posted it on its web-site for the world to see. While Professor Noble, as I have already stated, might reasonably have expected such treatment from others, he had the right to expect more from York.

To summarize, I have dismissed Professor Noble's claim for compensatory, aggravated and punitive damages for defamation. However, I have found that his right to academic freedom has been breached. The grievance is, accordingly, upheld to that extent.

By way of remedy, in respect of the breach of Article 10.01, YUFA requested a declaration, damages and an apology. I decline to order the University to apologize. However, I will require it to forthwith remove the Media Release from its web-site. In addition, having regard to the importance of the Collective Agreement right at stake, the precise nature of the breach, and the effects on Professor Noble described at the outset of this award, I am satisfied that some award of damages is appropriate. However, in the absence of any demonstrated proof of economic loss, I am also of the view that such damages must be limited.

On that basis, and having regard to all of the facts and circumstances of the case, I hereby:

1. declare that the University breached Article 10.01 of the Collective Agreement;
2. order the University to forthwith remove the Media Release from its web-site; and,
3. order the University to pay damages to Professor Noble in the amount of \$2,500.00.

I will remain seized of any and all matters related to the implementation of this award.

DATED at Oakville this 26th day of September, 2007

Russell Goodfellow - Sole Arbitrator